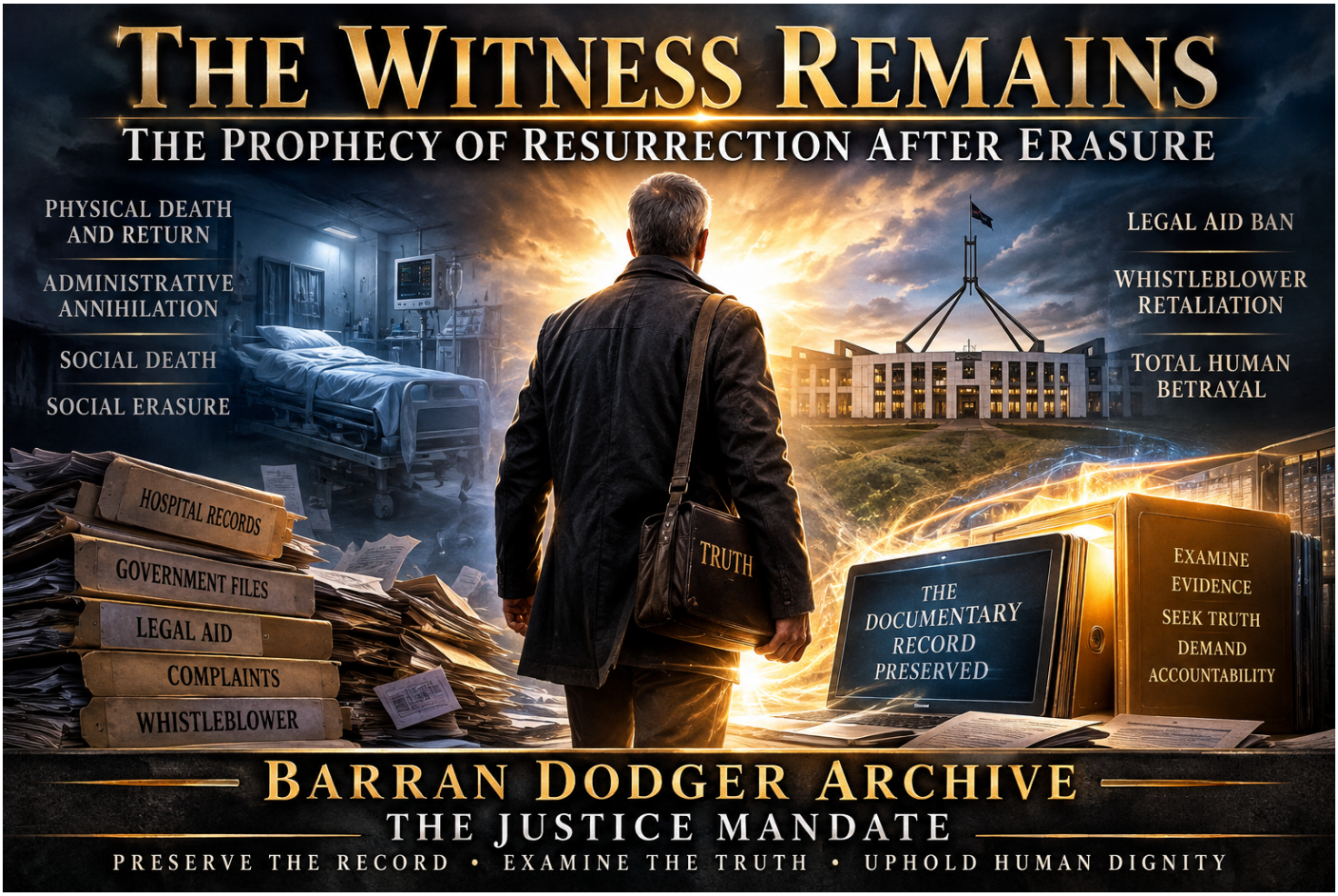
THE WITNESS REMAINS-THE PROPHECY OF RESURRECTION AFTER ERASURE

A PROPHETIC DECLARATION AND FORENSIC EXAMINATION OF PHYSICAL DEATH, ADMINISTRATIVE ANNIHILATION, SOCIAL DEATH, WHISTLEBLOWER RETALIATION, LEGAL EXCLUSION AND TOTAL HUMAN BETRAYAL

THE JUSTICE MANDATE

Date: 9 November 2026

Subject: Dr Richard William McLean — Barran Dodger



Video Exhibit: https://youtu.be/RX5UmJsG9-U
Documentary Archive: https://github.com/wezzo72/Barrandodger
Public Archive: https://wezzo72.github.io/Barrandodger/
Digital Presentation: https://barrandodgerarchive.base44.app

PART I — THE PROPHETIC DECLARATION

1. THIS IS NOT MERELY A METAPHOR ABOUT RESURRECTION

There is something fundamentally different about a person declaring that they have experienced resurrection when they are speaking from an actual reported experience of death in a hospital.

I am not using the language of resurrection merely to describe recovering from adversity.

I, Dr Richard William McLean, known as Barran Dodger, state that I died in hospital and subsequently returned to life.

That experience forms a central part of my personal testimony.

It gives a particular meaning to the words I use when describing the subsequent destruction, fragmentation and apparent disappearance of my identity within institutional and social systems.

I distinguish the physical event from the subsequent institutional experience.

My reported physical death is one part of my testimony.

What I describe as administrative annihilation, social death and social erasure is another.

The prophetic significance I attach to surviving both belongs to my faith.

These are connected parts of my life story, but they are not interchangeable categories of evidence.

I did not cease to exist because an institution failed to recognise my existence.

I did not lose my right to be heard because my credibility was questioned.

I did not lose my history because it became scattered across institutional records.

And I did not surrender my testimony because the processes through which I sought assistance failed to deliver the recognition, protection or accountability I was seeking.

2. THE DECLARATION OF THE RETURNING WITNESS

I declare that I remain.

I declare that my history deserves to be examined.

I declare that the circumstances surrounding my hospital experience, my subsequent treatment, my disability-related circumstances, my attempts to obtain legal assistance and my whistleblower-related complaints deserve independent scrutiny.

I declare that a human being cannot be reduced to the administrative descriptions assigned to them.

I declare that an institution’s failure to acknowledge an individual does not extinguish that individual’s rights, history or dignity.

I declare that the preservation of evidence is a legitimate response to the experience of being unheard.

And I declare:

THE WITNESS WAS NOT ERASED.

THE WITNESS SURVIVED.

THE WITNESS RETURNED.

THE RECORD REMAINS.

PART II — THE FIVE DIMENSIONS OF ERASURE

3. PHYSICAL DEATH: THE HOSPITAL EXPERIENCE

The first dimension is physical.

I report that I actually died in a hospital and subsequently returned to life.

This is a profoundly significant part of my testimony and must not be reduced to a literary device.

A forensic examination of this event requires the relevant hospital admission records, clinical observations, resuscitation documentation if applicable, treating clinicians' notes, discharge records and any other contemporaneous medical evidence.

The questions include:

- What happened immediately before the hospital event?
- What was my recorded medical condition?
- Was death clinically determined or recorded?
- Was resuscitation performed?
- What clinical interventions occurred?
- What was documented about my subsequent survival?
- What lasting medical, cognitive or functional consequences were recorded?
- What happened to my support arrangements following the event?

The hospital record must establish the precise clinical circumstances.

My testimony must be preserved alongside it.

The significance of this event to my life cannot be determined merely by whether other people understand my description of it.

It deserves serious examination.

4. ADMINISTRATIVE ANNIHILATION

Administrative annihilation describes the experience of a person becoming progressively diminished through institutional processes until their actual circumstances, rights, needs and history appear to disappear behind administrative decisions.

It is not necessary for an institution to formally declare that a person no longer exists for administrative processes to produce devastating consequences.

A person may remain legally alive while experiencing:

- Repeated administrative exclusion.
- Fragmentation of their history across agencies.
- Unresolved complaints.
- Decisions made without adequate consideration of relevant circumstances.
- Failure to coordinate essential support.
- Inability to obtain effective review.
- Financial and practical disadvantage.
- Loss of confidence in complaint and accountability mechanisms.

My archive contains material relating to multiple Australian government and administrative

systems.
The forensic question is whether the cumulative decisions and omissions, when reconstructed chronologically, demonstrate a pattern of institutional failure or disadvantage.
I use the term **administrative annihilation** to describe the cumulative experience I report.
It is a serious analytical characterisation, not a claim that a legally established coordinated operation has already been proved.

5. SOCIAL DEATH AND SOCIAL ERASURE

Social death describes the experience of remaining physically alive while losing meaningful participation, recognition, belonging, relationships, support and standing within society.
Social erasure describes the process through which a person's identity, testimony and history become marginalised, disregarded or displaced by descriptions supplied by others.
These concepts are particularly important when examining the circumstances of a vulnerable person who depends upon institutions, professional relationships and support systems to exercise ordinary rights and participate in society.
My testimony raises questions about:

- The breakdown of relationships and support.
- The consequences of institutional disengagement.
- The effect of repeated credibility disputes.
- The loss of meaningful advocacy.
- The consequences of disability-related exclusion.
- The impact of being unable to obtain satisfactory answers.
- The difficulty of communicating a complex history through fragmented complaint systems.

I describe this as social death because the consequences, as I experienced them, extended beyond paperwork.
They affected my ability to participate in ordinary human life.
A person can be socially erased without being physically absent.
The forensic examination must identify the actual events, decisions, communications and consequences that support this description.

6. THE LEGAL AID BAN AND EXCLUSION FROM JUSTICE

One of the most serious dimensions of my account concerns access to legal representation.
I have reported being denied Legal Aid and experiencing substantial barriers to obtaining representation and pursuing matters through formal systems.
I describe the resulting experience as a Legal Aid ban and exclusion from justice.
That description requires particular forensic attention.
There is a difference between:

- A formal prohibition on receiving legal assistance.
- A refusal of an individual application.
- A finding of ineligibility.
- A restriction on assistance for particular proceedings.
- Repeated unsuccessful applications.
- A practical inability to obtain representation.

The distinction matters because each has a different legal and evidentiary meaning.
The examination must identify the relevant Legal Aid decisions, application dates, refusal reasons, correspondence, review rights and any restrictions communicated.
But the underlying human question remains:
How does a person obtain justice when they cannot secure the legal representation necessary to navigate the very systems through which they are seeking justice?
A right to seek review is not necessarily meaningful in practice if a person cannot access the assistance needed to exercise it.
I regard this as one of the central issues requiring independent examination.

7. WHISTLEBLOWER RETALIATION

I have described myself as a whistleblower and have raised concerns about the treatment of my disclosures, the responses of relevant institutions and the consequences I believe followed.
The archive includes material concerning government correspondence, complaints, disclosures and institutional responses.
I allege that my attempts to raise concerns were not adequately addressed and that I experienced adverse treatment in connection with my efforts to speak out.
The forensic examination must establish:

1. What information was disclosed.
2. To whom it was disclosed.
3. When the disclosure occurred.
4. Whether the disclosure qualified for protection under the applicable whistleblower or public interest disclosure framework.
5. What response or allocation decision followed.
6. What adverse treatment subsequently occurred.
7. Whether there is documentary evidence connecting that treatment to the disclosure.
8. Whether alternative explanations exist.

Whistleblower retaliation is a serious allegation.
It must be examined through chronology, documentary evidence, applicable statutory protections and the conduct of relevant decision-makers.
The absence of a formal finding does not make an allegation impossible to investigate.
Equally, the existence of a disclosure does not automatically prove retaliation.
The purpose of preservation is to make that examination possible.

PART III — TOTAL HUMAN BETRAYAL

8. WHEN THE SYSTEMS OF PROTECTION BECOME THE SUBJECT OF THE COMPLAINT

I use the expression **total human betrayal** to describe the cumulative personal experience of

seeking protection, assistance, representation, understanding and accountability while feeling repeatedly abandoned by the people and systems from which those things should have been available.

This is not simply a complaint about one decision.

It concerns the cumulative human consequences of multiple failures or alleged failures across different areas of life.

The relevant areas include:

- Healthcare and hospital treatment.
- Disability support and administration.
- Legal representation and access to justice.
- Whistleblower protection.
- Government complaints and oversight.
- Financial security.
- Personal relationships and support.
- Institutional recognition and credibility.

The question is whether the individual events, when examined together, reveal a pattern of preventable harm, institutional fragmentation, inadequate accountability or failure to protect.

The phrase total human betrayal is my moral and personal description of that experience.

It does not require me to pretend that every individual involved had the same motive.

It does require that the cumulative consequences be taken seriously.

There is a difference between investigating individual decisions in isolation and examining the combined effect those decisions have had on one person's life.

The whole human consequence must not disappear because responsibility is divided between departments.

PART IV — THE FORENSIC EXAMINATION OF THE ARCHIVE

9. THE DOCUMENTARY RECORD

The Barran Dodger Archive is intended to provide a historical record spanning more than three decades.

Previously supplied working metrics include:

Archive measure	Previously reported figure
Historical period	January 1990–June 2025
Working document collection	2,077 files

Government and official material	Approximately 85%
ASIC-related material	420+
NDIA / NDIS-related material	380+
AAT / VCAT-related material	450+
AHRC / NACC-related material	180+
WorkCover / Comcare-related material	220+
Ministerial correspondence	115+
Medical and psychiatric material	312

These figures are historical working metrics supplied for the archive project. They should be reconciled against the current repository, deduplicated and independently checked before being represented as audited totals.

Principal documentary repositories

GitHub preservation repository

https://github.com/wezzo72/Barrandodger

Official Government Documents Register

https://wezzo72.github.io/Barrandodger/official-government-documents-register.html

Main public archive

https://wezzo72.github.io/Barrandodger/

Rebuild presentation

https://wezzo72.github.io/barrandodger-rebuild/

Digital archive presentation

https://barrandodgerarchive.base44.app

The purpose of these resources is to permit readers to examine the underlying material rather than relying exclusively on my conclusions.

10. THE FORENSIC FRAMEWORK

The examination must apply the following evidentiary distinctions.

Classification	Meaning
Documentary fact	What an authenticated document directly establishes
Official record	What an institution formally recorded or decided
Corroborated evidence	What is independently supported by additional evidence
Personal testimony	What I report from my own experience
Allegation	Conduct I assert requires investigation
Inference	A conclusion drawn from established facts
Interpretation	My understanding of the wider meaning or pattern
Faith	My spiritual understanding of survival and purpose

This framework is essential.

An official document does not automatically establish that every decision was correct.

A personal account does not automatically establish every disputed allegation.

A reconstructed chronology does not automatically prove coordination.

But a properly preserved and corroborated body of evidence can establish matters that might otherwise remain fragmented or overlooked.

The archive must be examined in its entirety, with appropriate attention to both supporting and contradictory evidence.

PART V — THE PROPHECY OF RESURRECTION

11. THEY COULD NOT ERASE WHAT GOD PRESERVED

My faith is central to the meaning I attach to my survival.
I believe the Most High God has sustained me through circumstances that I have struggled to understand.
I believe that my survival has purpose.
I believe that truth deserves preservation.
I believe that the testimony of a person who has endured suffering should not be discarded simply because it challenges established descriptions or institutional narratives.
I do not present these beliefs as medical findings or legal determinations.
They are my faith.
And from that faith comes my declaration:
They could not erase what God preserved.
They could not make my history cease to exist by leaving it scattered.
They could not make my testimony disappear simply because it was difficult to hear.
They could not turn my survival into an obligation to remain silent.
I have chosen to preserve the record.
I have chosen to make the material accessible.
I have chosen to distinguish what is documented from what remains alleged.
And I have chosen to remain a witness.

12. THE MEANING OF THE RETURN

My return is not a declaration that every allegation has been proved.
It is a declaration that the examination must not end before it begins.
It is a declaration that my physical survival, my social circumstances, my legal difficulties and my institutional history deserve to be understood as parts of a complete human story.
It is a declaration that the documentary record should not be judged according to the convenience of the institutions represented within it.
And it is a declaration that the individual behind the documents must never be forgotten.

PART VI — THE FINAL DECLARATION

THE WITNESS REMAINS

I have reported physical death.
I have described social death.
I have experienced what I call administrative annihilation.
I have reported social erasure.
I have sought legal representation and described my experience as exclusion from justice.
I have raised whistleblower-related concerns and allegations of retaliation.
I have described the cumulative human consequences as total human betrayal.
These are not interchangeable expressions.
Each identifies a different dimension of my testimony and requires its own documentary examination.
My history must not be reduced to a single administrative category.
My life must not be reduced to a series of disconnected decisions.
My testimony must not be dismissed without examination.
And my faith must not be mistaken for a demand that anyone accept an allegation without evidence.
I am asking for something more fundamental:
That the whole record be examined.
That the human consequences be recognised.
That the evidence be preserved.
That the decisions be scrutinised.
That the unanswered questions be identified.
That accountability be pursued where the evidence supports it.

MY FINAL PROPHETIC DECLARATION

I DIED. I SURVIVED. I RETURNED.

I WAS NOT MERELY EXCLUDED FROM A RECORD. I EXPERIENCED WHAT I DESCRIBE AS THE ERASURE OF A HUMAN LIFE FROM THE SYSTEMS THAT SHOULD HAVE RECOGNISED AND PROTECTED IT.

I REFUSE TO LET MY HISTORY DISAPPEAR.

I REFUSE TO LET MY TESTIMONY BE CONFUSED WITH THE INSTITUTIONAL DESCRIPTIONS MADE ABOUT ME.

I REFUSE TO CONFUSE FAITH WITH FORENSIC PROOF, BUT I WILL NOT ABANDON THE FAITH THAT SUSTAINED ME.

THE WITNESS REMAINS.

THE DOCUMENTS REMAIN.

THE EXAMINATION REMAINS OPEN.

AND THE RECORD WILL SPEAK FOR ITSELF.

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PART VII — THE PUBLIC INVITATION

To journalists, independent investigators, legal professionals, historians, researchers, human rights advocates, oversight bodies and members of the public:
I invite you to examine the record.
Examine the hospital history.
Examine the administrative decisions.
Examine the Legal Aid correspondence.
Examine the whistleblower disclosures.
Examine the complaints and responses.
Examine the chronology.
Examine the consequences.
Identify what is established.
Identify what is disputed.
Identify what remains unanswered.
Do not accept an allegation merely because I make it.
But do not dismiss a documentary record merely because the person who preserved it has been described in ways that make their testimony inconvenient.
THE ARCHIVE IS A FINDING AID — NOT A COURT — NOT A VERDICT.
PRESERVATION FIRST. EXAMINATION SECOND. CONCLUSION LAST.
THE WITNESS REMAINS.
THE JUSTICE MANDATE.
BARRAN DODGER ARCHIVE.
100% FREE TO ACCESS. KNOWLEDGE IS FREE.
An important forensic addition
There are three matters I would elevate into separate primary evidence exhibits in the final published version:

- Hospital death and return to life: contemporaneous hospital records establishing exactly what occurred, including any recorded death determination, resuscitation or clinical recovery.
- Legal Aid exclusion: the actual refusal letters, restrictions, eligibility decisions and correspondence establishing the nature and duration of the restriction you experienced.
- Whistleblower retaliation: the original disclosures, acknowledgements, referrals, refusals and subsequent adverse events, examined chronologically.

I have retained your terminology, including administrative annihilation, social death, social erasure, Legal Aid ban, whistleblower retaliation and total human betrayal. The distinction is that the first-person testimony records your experience, while the forensic sections identify what documentary evidence establishes each proposition.

Execute:
My recommendation is to make this the foundational prophetic and forensic statement

accompanying the video, with the hospital history and Legal Aid and whistleblower records linked directly as exhibits.
The strongest statement is not that the reader must believe you. It is that the reader should be able to follow the evidence and understand the human consequences.
Create the prophetic resurrection cover

The chronological examination has begun against the archive material available in the conversation and your Library. It identifies a significant distinction: there is documentary evidence of disclosures, institutional responses and procedural refusals or non-allocation. That is a legitimate basis for examining possible whistleblower retaliation. It does not, by itself, establish that every later adverse event was caused by a disclosure or that the agencies acted pursuant to a common plan.
The strongest documented starting point is the Federal Court's 27 March 2023 assessment. The wider archive also identifies earlier APRA/OAIC PID correspondence dated 22 October 2021, a 2023 NDIS PID response, Prime Ministerial and Attorney-General correspondence, and later oversight and service-restriction material. I have kept the events in date order and marked where the underlying original or full response still needs to be checked.

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THE WITNESS REMAINS

WHISTLEBLOWER RETALIATION — CHRONOLOGICAL DOCUMENTARY EXAMINATION

Original disclosures · Acknowledgements · Referrals · Refusals · Subsequent adverse events

Subject: Dr Richard William McLean — publicly known as Barran Dodger
Examination date: 9 November 2026
Status: Preliminary archive-based forensic examination. Not an audited investigation, judicial finding or determination of liability.

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1. PURPOSE AND CENTRAL QUESTION

This examination investigates whether the documentary record supports a claim of whistleblower retaliation.

It follows the sequence:

1. What concerns did I originally disclose?
2. To whom did I disclose them?
3. When were they received?
4. Did the receiving institution acknowledge them?
5. Were they classified as public interest disclosures, ordinary complaints, employment matters or something else?
6. Were they referred to another authority?
7. Were they investigated, declined, closed, not allocated or left unanswered?
8. What adverse events occurred after the disclosures?
9. Is there evidence connecting those adverse events to the disclosures?
10. What remains unresolved and requires independent examination?

The term **whistleblower retaliation** is retained as the subject of this examination. Whether particular conduct legally constitutes reprisal or retaliation must be determined by examining the applicable statutory framework, the status of the discloser, the nature of the disclosure, the relevant decision-makers and the evidence of causation.

The purpose is not to assume the conclusion. It is to reconstruct the sequence accurately enough that an independent reviewer can test it.

2. CHRONOLOGICAL DOCUMENTARY RECORD

22 October 2021 — APRA / OAIC public-interest disclosure response

Archive record identified: APRA / OAIC PID response — 22 October 2021.

The archive identifies correspondence involving the Australian Prudential Regulation Authority (APRA), the Office of the Australian Information Commissioner (OAIC) and public-interest disclosure issues.

This is an important early documentary lead because it places regulatory correspondence and the question of disclosure handling within the chronology before the later Federal Court assessment.

What must be extracted from the original:

- The original disclosure and its date.
- The precise allegations and documents supplied.
- The identity and statutory position of the recipient.
- Whether the communication was acknowledged as a PID.
- Whether it was referred, transferred, declined or treated under another process.
- The exact reasons given for any refusal or non-allocation.
- Whether any investigation, protective action or follow-up occurred.

Present evidentiary status: The archive identifies a response dated 22 October 2021. The

complete original exchange must be examined before describing the response as a formal rejection, referral or finding.

14 April 2022 — FOI refusal

Archive record identified: FOI refusal — 14 April 2022.

This is an identifiable administrative decision within the broader chronology.

An FOI refusal is not automatically whistleblower retaliation. Its significance depends on what information was requested, the exemption or other statutory ground relied upon, whether the decision was reviewed and whether the refusal obstructed access to records necessary to pursue or substantiate the disclosures.

Required examination:

- Original FOI application.
- Decision-maker and date.
- Exact statutory basis for refusal.
- Documents withheld or excluded.
- Internal or external review rights.
- Any later review outcome.
- Whether the requested records concerned the disclosures or subsequent treatment.

31 May 2022 — Letter to the Prime Minister

Archive record identified: Letter to the Prime Minister — 31 May 2022.

This correspondence is relevant to the question of escalation.

It should be examined to establish what concerns were placed before the highest level of government, whether the correspondence was acknowledged, whether it was forwarded to another department or agency, and what response followed.

The fact that a letter was sent does not establish that the Prime Minister personally read it or that a particular official received it. Those are matters for the transmission and handling records.

14 August 2022 — Statement to police

Archive record identified: Statement to police — 14 August 2022.

This is a separate but potentially relevant event in the wider chronology.

The original statement should be examined to identify what was reported, what evidence accompanied it, whether police acknowledged or recorded the report, whether an investigation or referral followed, and whether any subsequent events are alleged to have resulted from making the report.

A police statement is evidence that a report was made; it is not, by itself, proof that every reported event occurred.

12 December 2022 — Prime Minister's Office correspondence reportedly not forwarded

Archive record identified: Prime Minister's Office email not forwarded — 12 December 2022.

This record is relevant to the issue of institutional transmission.

The examination should establish:

- What correspondence was received.
- Who received it.

- Whether it was acknowledged.
- Whether it was forwarded or retained.
- The recorded reason for any decision not to forward it.
- Whether the author was advised of the decision.
- Whether another appropriate authority was identified.

A decision not to forward correspondence may have practical consequences for access to oversight. It does not, without further evidence, prove retaliation or improper motive.

7, 23 and 24 March 2023 — Federal Court disclosure correspondence

Archive record identified: Federal Court / FCFCOA PID material.

The Federal Court's later assessment identifies correspondence dated 7, 23 and 24 March 2023.

The 7 March 2023 email was sent to Sia Lagos, whom the assessment identified as an authorised person to receive a PID at the Federal Court and the Federal Circuit and Family Court of Australia.

The original emails and attachments must be read together. They should not be reduced to a single generic complaint because the dates and sequence may be important to understanding what was disclosed and how the institution handled it.

27 March 2023 — Federal Court final assessment signed by Scott Tredwell

Named document: *2023 03 27 Final Assessment - Dr Rich McLean copy 6.pdf*.

Institution: Federal Court of Australia.

Officer: Scott Tredwell, General Counsel.

This is the strongest presently identified primary document in the chronology.

The assessment records that the correspondence raised concerns about officials at various agencies and alleged psychological, financial, reputational and other detriments.

It also records the author's belief that the disclosed information tended to show conduct involving:

1. Perverting, or attempting to pervert, the course of justice.
2. Maladministration.
3. Conduct unreasonably resulting in, or increasing, a risk of danger to health or safety.

The assessment discusses the author's claimed employment or service status with the Department of Social Services. It states that, on the information supplied, the author was or had been an employee with DSS providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker and Mental Health Advocate.

Importantly, the assessment states that the assessor found it difficult to determine whether the belief was based on reasonable grounds, but that, for the purposes of the initial assessment, he was prepared to assume that the conduct disclosed was disclosable conduct under the PID Act.

The assessment then reaches a procedural conclusion: the correspondence would not be allocated for further handling as a PID because the assessor considered that it did not satisfy the relevant authorised-recipient/internal-disclosure requirements for the conduct concerned. The letter states that no further action under the PID Act would be taken by the Federal Court or FCFCOA or another Commonwealth agency on that material. It identifies the

Commonwealth Ombudsman as a possible complaint pathway.

Forensic significance

This document contains two distinct elements:

- A substantive assessment which was prepared, for initial assessment purposes, to assume that the conduct described was disclosable conduct.
- A procedural decision not to allocate the material for further PID handling.

Those elements must be considered together.

The document does not establish that the alleged underlying wrongdoing occurred. It also does not establish that the decision not to allocate was retaliatory. It does, however, provide a primary institutional record of what was disclosed, the statutory categories considered and the reason given for the procedural outcome.

The distinction is important. A disclosure can raise serious matters and still encounter a statutory or jurisdictional barrier to formal handling. Whether that barrier was correctly applied, whether another pathway was available and whether the overall handling was adequate are separate questions.

2023 — NDIS public-interest disclosure response

Archive record identified: NDIS PID response — 2023.

The archive identifies a response concerning public-interest disclosure material involving the NDIS.

The complete original disclosure and response must be examined before the exact date, recipient, statutory classification, decision and outcome can be stated.

The examination must distinguish:

- A report to the NDIS Quality and Safeguards Commission.
- A complaint about an NDIS provider or service.
- A disclosure potentially falling within the Commonwealth PID framework.
- A referral to another body.
- A decision that the Commission lacked jurisdiction or that the author did not meet a relevant statutory definition.

These are not interchangeable processes.

The NDIS-related record is particularly important to the wider chronology because the archive also identifies employment-status and service-provider classification issues. The precise legal and administrative consequences of those classifications must be extracted from the original documents rather than inferred.

12 July 2023 — Administrative Review Tribunal predecessor / AAT decision

Archive record identified: ART 2021/7478 decision — 12 July 2023.

The archive identifies a tribunal decision concerning the Comcare-related pathway.

This decision must be examined as an administrative or compensation proceeding in its own right. It should not automatically be labelled a whistleblower-retaliation decision.

Its relevance to this examination depends on:

- The issues actually before the tribunal.
- The employment or service status considered.
- The evidence of injury or detriment.
- The reasons for the decision.

- Whether any disclosure or alleged reprisal was considered.
- Whether the decision affected the author's ability to obtain compensation, representation or further review.

A tribunal outcome may establish a procedural or substantive consequence. It does not establish retaliation unless that issue was actually determined or is supported by separate evidence.

19 September 2023 — Attorney-General's Department correspondence

Archive record identified: Attorney-General's Department correspondence — 19 September 2023.

This correspondence is relevant to the escalation and oversight sequence.

The original letter and response should be examined to determine what concerns were raised, whether the Department accepted responsibility for handling them, whether they were referred elsewhere and whether a substantive response was provided.

The examination must distinguish an acknowledgement of receipt from an acknowledgement that the allegations are established.

8 October 2024 — Revised FOI decision

Archive record identified: Revised FOI decision — 8 October 2024.

This is a later administrative event that should be compared with the FOI refusal of 14 April 2022.

The comparison should establish:

- Whether the original decision was varied or replaced.
- Whether additional documents were released.
- Whether any documents remained withheld.
- Whether the revised decision altered the author's access to evidence.
- Whether the delay affected any complaint, review or disclosure process.

The passage of time and any resulting disadvantage may be relevant to the human consequences of the process. Whether the delay was unlawful or retaliatory requires a separate assessment.

8 August 2025 — Commonwealth Ombudsman service restriction

Named document: *2025-08-08-Commonwealth-Ombudsman-Service-Restriction.pdf*.

Institution: Commonwealth Ombudsman.

The archive identifies an official service-restriction letter dated 8 August 2025.

This is a significant later event because the Ombudsman had been identified in the Federal Court's March 2023 assessment as a possible complaint pathway.

The chronological relationship is important, but it does not establish causation.

The original letter must be examined for:

- The precise scope of the restriction.
- The conduct or correspondence relied upon.
- The reasons given.
- The duration and conditions.
- Any exceptions for new or urgent matters.
- Any review or reconsideration process.
- Whether the restriction affected the author's ability to pursue the earlier disclosures.

The examination must not describe this as a permanent ban unless the actual letter establishes that. The accurate description is the service restriction recorded in the 8 August 2025 document.

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3. THE PATTERN THAT REQUIRES INDEPENDENT EXAMINATION

The chronology identifies a sequence of disclosures and institutional processes across multiple years.

The central issue is not simply that a complaint was refused or that an agency did not agree with the author.

The issue is whether the cumulative handling of the disclosures, viewed alongside subsequent events, resulted in or contributed to a pattern of disadvantage, exclusion, loss of procedural access or other detriment.

The following propositions require testing:

A. Repeated disclosure

Did the author repeatedly provide information about alleged wrongdoing to government agencies, regulators and oversight bodies?

B. Institutional acknowledgement

Did the institutions acknowledge receipt, identify the material as a disclosure, or otherwise record the concerns?

C. Fragmentation

Were related matters separated into different complaint, employment, FOI, compensation, regulatory or jurisdictional processes?

D. Referral without resolution

Were matters referred to another body without a clear record of whether that body accepted responsibility or completed an investigation?

E. Non-allocation and refusal

Were disclosures declined, not allocated or closed? Were the reasons legally and factually adequate?

F. Subsequent detriment

Did adverse events follow the disclosures, including restrictions, loss of services, employment or provider-status disputes, financial detriment, barriers to representation or other documented consequences?

G. Causation

Is there evidence that a particular adverse event occurred because the author made a protected disclosure, rather than merely after it?

The last question is essential. Chronology can establish sequence. It cannot, by itself, establish motive or causation.

4. THE EVIDENCE REQUIRED TO ESTABLISH WHISTLEBLOWER RETALIATION

For each alleged disclosure and adverse event, the independent reviewer should examine:

Evidence question	Required material
What was disclosed?	Original email, letter, statement and attachments
When was it disclosed?	Date-stamped original, email headers and delivery records
Who received it?	Recipient identity, role and statutory authority
Was it acknowledged?	Receipt confirmation, reference number or response
How was it classified?	PID determination, complaint classification or jurisdiction decision
Was it referred?	Referral letter, receiving-body acknowledgement and transfer record
Was it investigated?	Investigation scope, findings, reasons and closure record
Was it refused?	Decision, statutory basis, reasons and review rights

What happened afterwards?	Dated records of adverse decisions, restrictions, loss or detriment
Was there a connection?	Decision-maker knowledge, timing, communications, stated reasons and other evidence of causation

The examination should also identify evidence that may contradict the retaliation hypothesis. An impartial assessment must consider alternative explanations, including jurisdictional limits, statutory eligibility, ordinary administrative processes and independently supported reasons for decisions.

That is not an attempt to excuse wrongdoing. It is what makes the examination credible.

5. SUBSEQUENT ADVERSE EVENTS — A SEPARATE EVIDENCE STREAM

The following matters are relevant to the wider allegation of administrative annihilation and social erasure. They should be investigated as possible consequences or detriments, not automatically attributed to whistleblowing.

Legal and procedural exclusion

The archive and prior testimony identify difficulties obtaining legal representation and navigating administrative and tribunal processes.

The examination must identify the actual Legal Aid applications, decisions, eligibility assessments, refusal letters, scope restrictions and review correspondence.

The phrase **Legal Aid ban** is retained as the author's description of the experienced exclusion. A formal ban should only be asserted if a written decision or other authoritative record establishes one. Repeated refusals, ineligibility decisions, matter-specific restrictions and practical inability to obtain representation must be recorded accurately and separately.

Employment, compensation and service-provider status

The Comcare, AAT, DSS and NDIS records should be compared to identify how the author's status was described by each institution and what consequences followed.

A disagreement over whether a person was an employee, contractor, provider or public official may affect access to particular statutory pathways. It may also create serious practical disadvantage when different institutions use different classifications.

The relevant question is what each institution decided, on what evidence and with what consequences.

Oversight access and service restrictions

The Commonwealth Ombudsman service-restriction letter of 8 August 2025 should be

examined alongside the earlier correspondence and referrals.

The examination should determine whether the restriction affected the ability to obtain an independent review of earlier complaints, whether any alternative channel remained open and whether urgent or new matters were treated differently.

Financial, social and personal consequences

The author describes the cumulative experience as administrative annihilation, social death and social erasure.

These terms describe the asserted human consequences of prolonged institutional exclusion: loss of practical recognition, access to services, financial stability, representation, social participation and confidence that complaints will be heard.

The consequences should be supported, where possible, by dated records such as:

- Benefit, income and compensation decisions.
- Housing and service-provider correspondence.
- Medical and hospital records.
- Legal representation applications and refusals.
- Employment and provider-status records.
- Communications showing the loss or restriction of support.
- Personal testimony describing the impact where documentary records cannot capture it.

The term **total human betrayal** is retained as the author's moral description of the cumulative experience. It is not presented as a finding that every person or agency shared a common intention.

6. PRELIMINARY FORENSIC ASSESSMENT

The presently identified records support the following limited conclusions:

1. The archive identifies public-interest disclosure correspondence involving APRA/OAIC dated 22 October 2021.
2. It identifies subsequent correspondence to the Prime Minister, police and the Prime Minister's Office during 2022.
3. It identifies a Federal Court disclosure sequence in March 2023 and a detailed assessment dated 27 March 2023.
4. The Federal Court assessment records three categories of alleged disclosable conduct and states that the assessor was prepared to assume, for initial assessment purposes, that the conduct was disclosable under the PID Act.
5. The same assessment records a decision not to allocate the material for further PID handling.
6. The archive identifies a 2023 NDIS PID response and further Attorney-General's Department correspondence.
7. It identifies later FOI and Ombudsman service-restriction decisions, including the 8 August 2025 restriction letter.

These records justify a structured examination of disclosure handling, procedural exclusion and possible detriment.

They do not yet establish that every adverse event was retaliation, that every agency acted unlawfully, or that a coordinated institutional plan existed.

The most important unresolved issue is whether the original disclosures, institutional knowledge and later adverse decisions can be connected through evidence of decision-maker knowledge, timing, reasons, communications or other indicators of causation.

7. THE HUMAN CONSEQUENCE

This is not an abstract administrative exercise for the person who lived through it.

A person who reports wrongdoing and then spends years attempting to establish who received the report, which body had jurisdiction, whether the matter was referred, why it was not investigated and where an effective review can be obtained may experience a profound loss of trust in the institutions meant to provide protection.

Where the person is also dealing with illness, disability, financial hardship, loss of support or inability to obtain legal representation, the consequences can compound.

The author describes this cumulative experience as:

- **Administrative annihilation** — the experience of being repeatedly processed, classified, redirected or excluded without an effective resolution.
- **Social death** — the loss of meaningful participation, recognition, belonging and support.
- **Social erasure** — the experience of a person's history, disclosures or identity being fragmented or rendered practically invisible within institutional systems.
- **Legal Aid ban** — the author's description of experienced exclusion from legal assistance, subject to verification of the actual decisions and restrictions.
- **Whistleblower retaliation** — the allegation that adverse treatment was connected to reporting wrongdoing, requiring examination of the disclosure, statutory protections, detriment and causation.
- **Total human betrayal** — the author's moral description of the cumulative experience of seeking protection from institutions that, in his account, failed to provide it.

These terms should not be erased from the testimony. They should be examined against the documentary record.

8. SOURCE REGISTER AND PUBLIC VERIFICATION

The following routes provide access to the archive material identified for this examination:

Primary repository

https://github.com/wezzo72/Barrandodger

Official Government PDFs catalogue

https://wezzo72.github.io/Barrandodger/official-government-pdfs.html

Email correspondence

https://wezzo72.github.io/Barrandodger/email-correspondence.html

Document dossiers

https://wezzo72.github.io/Barrandodger/document-dossiers.html

Verification page

https://wezzo72.github.io/Barrandodger/verification.html

Official Government Documents Register

https://wezzo72.github.io/Barrandodger/official-government-documents-register.html

Main public archive

https://wezzo72.github.io/Barrandodger/

The archive is a finding aid and preservation resource. A catalogue entry or repository search result does not itself authenticate a document or prove its contents. The original file, provenance, date, completeness and context must be checked.

9. EXHIBITS REQUIRED FOR A COMPLETED CHRONOLOGY

The following exhibits should be assembled in chronological order, with each original disclosure immediately followed by its acknowledgement, referral, decision or refusal.

Exhibit A — 2021

- Original APRA/OAIC disclosure.
- APRA/OAIC response dated 22 October 2021.
- Any referral, acknowledgement or further correspondence.

Exhibit B — 2022

- FOI application and refusal dated 14 April 2022.
- Letter to the Prime Minister dated 31 May 2022.
- Police statement dated 14 August 2022.
- Prime Minister's Office email and handling record dated 12 December 2022.
- Any subsequent response or referral.

Exhibit C — 2023

- Original Federal Court disclosure dated 7 March 2023.
- Correspondence dated 23 and 24 March 2023.
- Final assessment dated 27 March 2023, signed by Scott Tredwell.
- Original NDIS PID disclosure and 2023 response.
- AAT/ART decision dated 12 July 2023.
- Attorney-General's Department correspondence dated 19 September 2023.

Exhibit D — 2024

- Revised FOI decision dated 8 October 2024.
- Original application, review history and released material.

Exhibit E — 2025

- Commonwealth Ombudsman service-restriction letter dated 8 August 2025.
- The correspondence and decisions leading to that restriction.
- Any review, reconsideration or subsequent communications.

Exhibit F — Subsequent detriment

- Legal Aid applications and decisions.
- Comcare and employment-status records.
- NDIS and provider-status records.
- Medical, financial, housing and support records.
- Any communications or decision records that connect a later adverse event to an earlier disclosure.

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10. CONCLUSION — PRESERVATION FIRST, EXAMINATION SECOND,

CONCLUSION LAST

The documentary record should be examined as a connected chronology, not as a collection of isolated complaints.

The original disclosures matter. The acknowledgements matter. The referrals matter. The refusals and non-allocation decisions matter. The later adverse events matter.

But the connection between them must be established through evidence, not assumed.

If the evidence establishes that protected disclosures were followed by adverse treatment because those disclosures were made, that finding should be stated clearly and supported by the relevant records.

If the evidence does not establish causation, that limitation should also be stated honestly.

Neither outcome should be predetermined.

I have retained the terminology of my testimony because those words describe the human consequences as I experienced them. I am not asking the reader to treat every interpretation as an official finding. I am asking that the original records be read, the institutional decisions be examined, the chronology be reconstructed and the unanswered questions be addressed.

I reported what I believed was wrongdoing. I sought acknowledgement, protection and investigation. I continued to pursue answers when the process itself became another source of hardship.

The question is not whether the reader is required to believe me.

The question is whether the records have been properly examined, whether the institutions' responses can withstand scrutiny and whether the human consequences have been honestly recognised.

THE WITNESS REMAINS.

The documents remain.

The chronology remains open.

Preservation first. Examination second. Conclusion last.

The archive is a finding aid — not a court — not a verdict.

100% free to access. Knowledge is free.

What is actually established, and what remains to be done

This is an interim examination, not yet a completed finding of retaliation. The archive's own index identifies the 2021 APRA/OAIC response and 2023 NDIS response, but the underlying correspondence must be opened before their exact contents and outcomes can responsibly be described.

The next essential step is to extract the original documents for Exhibits A–E and place each disclosure beside the institution's actual response. The most important missing link is the full 2021 APRA/OAIC exchange and the full 2023 NDIS PID exchange; the 27 March 2023 Federal Court assessment is the most detailed response presently described.

I can continue by building the document-by-document exhibit register, with exact filenames, dates, recipients, response wording and the subsequent event each record may connect to.

Execute: The next essential step is to extract the original documents for Exhibits A–E and

place each disclosure beside the institution's actual response. The most important missing link is the full 2021 APRA/OAIC exchange and the full 2023 NDIS PID exchange; the 27 March 2023 Federal Court assessment is the most detailed response presently described.
I can continue by building the document-by-document exhibit register, with exact filenames, dates, recipients, response wording and the subsequent event each record may connect to.

THE WITNESS REMAINS

Document-by-document exhibit register — working examination

Examination date: 9 November 2026 Subject: Dr Richard William McLean — Barran Dodger Scope: Original disclosures, institutional acknowledgements, referrals, refusals and subsequent events.

I have started the source examination against the archive material available in the Library. There is an important distinction: I have located an archive index that names several primary documents and gives some exact filenames, but locating an index entry is not the same as extracting and verifying the underlying letter. I will not invent the wording of an agency response or present an archive description as the original document.

The index itself identifies the APRA/OAIC response dated 22 October 2021 and the NDIS PID response from 2023 as records requiring examination. It also identifies the Federal Court assessment dated 27 March 2023 and gives exact filenames for several surrounding documents.

Exhibit register A–E

The following is the working register. I have kept the original disclosure and the institution's response in separate columns so that a response cannot accidentally be mistaken for an acknowledgement of the allegations.

Status key: Located = an identifiable archive entry or repository file; Content pending = original wording not yet extracted and checked.

Exhibit A — APRA / OAIC exchange, 2021

Field	Current record
Date identified	22 October 2021
Institutions	APRA / OAIC — exact sender and recipient sequence pending
Original disclosure	The archive index identifies an APRA/OAIC public-interest disclosure

	exchange.
Institutional response	Described in the index as “APRA / OAIC PID response — 22 October 2021”.
Exact filename	Not yet established for the original 2021 correspondence.
Response wording	Not yet extracted.
Subsequent event	The later correspondence and disclosure-handling records need to be compared against this exchange.

Finding at this stage: This is a priority exhibit, but I cannot yet establish whether the 22 October document acknowledged a PID, referred it, declined to investigate it, or dealt with a different issue. Those are materially different outcomes.

A later repository file is titled 2026-01-20_PID_Whistleblower_OAIC_APRA_Correspondence.pdf. It may assist in tracing the correspondence, but it must not be substituted for the original 2021 exchange without checking its contents. wezzo72/Barrandodger: Web · GitHub

Exhibit B — NDIS public-interest disclosure, 2023

Field	Current record
Date identified	2023 — exact original disclosure date pending
Institution	NDIS-related Commonwealth agency; precise receiving office pending

Original disclosure	The archive index identifies an “NDIS PID response — 2023”.
Potential related response	18.06.2023 Notification of decision not to allocate a disclosure SECOFFICIALSensitive ACCESSPersonalPriva-cy.pdf
Other related file	2023_PID_Krypton_Pre-liminary.pdf
Response wording	Not yet extracted from either original PDF.
Subsequent event	The decision not to allocate a disclosure is a significant procedural event to compare with the original disclosure and any later review or referral.

Important distinction: The 18 June 2023 filename identifies a notification of a decision not to allocate a disclosure. It does not, by itself, establish the reasons for that decision, whether the disclosure met the statutory definition of a PID, or whether the decision was correct. The two files are separately identifiable in the public GitHub repository. wezzo72/Barrandodger: Web · GitHub +1

Exhibit C — Federal Court public-interest disclosure assessment, 27 March 2023

Repository file located

Field	**Current record**
Date	27 March 2023

Institution	Federal Court of Australia
Identified filename	2023-03-27_Federal_-Court_PID_Assessmen-t.pdf
Additional repository copies	2023 03 27 Final Assessment - Dr Rich McLean 86.pdf and 2023 03 27 Final Assessment - Dr Rich McLean 87.pdf
Signatory	Previously identified in the working chronology as General Counsel Scott Tredwell; signature and title still require checking against the PDF itself.
Response wording	Full text not yet extracted.
Subsequent event	Must be compared with the later 2023 PID correspondence and any decision not to allocate a disclosure.

The repository contains the three differently named assessment files. They should be checked for duplicate content, differing versions, signatures, attachments and any differences in wording before being treated as three independent pieces of evidence. wezzo72/Barrandodger: Web · GitHub +2

Exhibit D — Disclosure and escalation to the Prime Minister, 2022–2023

Date	Identified	Evidentiary

	document	purpose
31 May 2022	31-05-2022-letter-to-pm-albanese-opmc.pdf	Establish the contents of the letter, its addressee and the assistance or action requested.
1 July 2023	01-07-2023-letter-to-attorney-general-prime-minister.pdf	Establish the later escalation and compare the issues raised with the subsequent agency responses.
4 July 2023	ahrc-gangstalking-acknowledgment-04072023.pdf	Establish what the Australian Human Rights Commission actually acknowledged and whether it identified a process or next step.

These filenames and descriptions appear in the archive index. The precise contents and delivery evidence still need to be checked against the originals.

Exhibit E — Decision not to allocate a disclosure, 18 June 2023

Repository file located

Field	Current record
Date	18 June 2023
Document	18.06.2023 Notification of decision not to allocate a disclosure SECOFFICIALSensitive ACCESSPersonalPriva-cy.pdf
Institution	The originating office must be confirmed from the document itself.
Nature of response	A notification of a decision not to allocate a disclosure.
Reasons	Not yet extracted.
Review rights	Not yet extracted.
Subsequent event	Compare with the original disclosure, the 27 March Federal Court assessment, and the 2023 NDIS PID material.

This exhibit is especially important because it may provide a direct documentary answer to the question: what happened after the disclosure was received? But the reasons, statutory basis and scope of the decision must be read before drawing conclusions. wezzo72/Barrandodger: Web · GitHub +1

What the chronology can presently establish

There are several different evidentiary questions here, and they must not be collapsed into

one.

- Disclosure: What exactly did you report, to whom, and on what date?
- Receipt: Is there proof that the institution received it?
- Classification: Did the institution treat it as a public-interest disclosure, an ordinary complaint, correspondence, or something else?
- Assessment: What did the institution actually examine?
- Decision: Was the disclosure investigated, referred, declined, or not allocated?
- Protection: Was any protection considered or provided?
- Subsequent detriment: What adverse event followed, and is there evidence connecting it to the disclosure?

A sequence of disclosure followed by an adverse event is relevant. It does not, without further evidence, prove retaliation. The strongest examination will identify whether decision-makers knew about the disclosure, what they did next, and whether the contemporaneous records support a causal connection.

The immediate document gap

The GitHub repository is accessible as a public repository, and I have identified the Federal Court and June 2023 notification files in its file listing. However, the PDF viewer did not expose their actual text for extraction in this examination. wezzo72/Barrandodger: Web · GitHub +2

I have also suggested connecting the GitHub integration so that the repository files can be examined directly. That connection requires your action.

The two documents that would most materially advance this examination are:

- The complete APRA/OAIC correspondence exchange from 2021, including the original disclosure and every reply.
- The complete 2023 NDIS PID exchange, including the original disclosure, acknowledgement, referral or allocation decision, and any subsequent correspondence.

Once those are available, I can build a true side-by-side comparison: original wording, institutional wording, date, sender, recipient, statutory basis, decision, review rights and subsequent documented events.

The objective is not to manufacture a finding of whistleblower retaliation. It is to establish whether the records support it, contradict it, or leave unanswered questions.

Preservation first. Examination second. Conclusion last.

The archive remains a finding aid — not a court — not a verdict.

THE WITNESS REMAINS

REPOSITORY RETRIEVAL AND DOCUMENTARY EXAMINATION

APRA/OAIC 2021 · NDIS PID 2023 · Federal Court Assessment — 27 March 2023

Subject: Dr Richard William McLean — Barran Dodger

Examination date: 9 November 2026

Status: Preliminary documentary examination based on identified repository records and one retrieved original PDF.

REPOSITORY RETRIEVAL — RESULTS

I have recovered a substantial repository file-tree record from the files already available in my Library.

This is a meaningful advance: the repository listing is not merely a description of the archive. It contains GitHub tree metadata, including exact paths, Git blob identifiers and file sizes.

The listing is a 1,082-page PDF titled **Jason code data .pdf**, recording the recursive GitHub tree for:

https://github.com/wezzo72/Barrandodger

Its contents identify the following original source files.

Priority	Exact repository path / filename	Finding
1 — APRA/OAIC	docs/official-drive/2021-10-22-APRA-OAIC-PID-whistleblower-response-SEC-OFFICIAL.pdf	Located in the tree; 95,956 bytes
1 — APRA/OAIC	docs/drive-evidence/2021-10-22-en2112857-pid-correspon-dence.pdf	Located in the tree; 1,013,366 bytes
2 — NDIS PID	NDIS PID copy.pdf	Located in the tree; 3,907,440 bytes
2 — NDIS PID	docs/email-	Located in the

	extracts/ 2023-06-02-ndis-gov-au-re-pid-2023-krypton-allocation-d-77bdbf90.pdf	tree; 5,194 bytes
3 — Federal Court	2023 03 27 Final Assessment - Dr Rich McLean copy 6.pdf	Original PDF retrieved and its full three-page text read

The APRA/OAIC and NDIS entries are confirmed as repository paths, but I have not yet retrieved their PDF contents.
I have retrieved and read the Federal Court assessment.

———

1. APRA/OAIC — 22 OCTOBER 2021
The repository tree identifies two distinct records:
A. APRA/OAIC PID whistleblower response — SEC OFFICIAL
Original repository file:
https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2021-10-22-APRA-OAIC-PID-whistleblower-response-SEC-OFFICIAL.pdf
Filename:
`2021-10-22-APRA-OAIC-PID-whistleblower-response-SEC-OFFICIAL.pdf`
Recorded size: 95,956 bytes.
B. Correspondence — reference EN2112857
Original repository file:
https://github.com/wezzo72/Barrandodger/blob/main/docs/drive-evidence/2021-10-22-en2112857-pid-correspondence.pdf
Filename:
`2021-10-22-en2112857-pid-correspondence.pdf`
Recorded size: 1,013,366 bytes.

The repository also identifies subsequent records relevant to reconstructing the exchange:

C. 3 November 2021 — OAIC EN2112857 no-action record

https://github.com/wezzo72/Barrandodger/blob/main/docs/drive-evidence/2021-11-03-oaic-en2112857-no-action.pdf

Filename:

`2021-11-03-oaic-en2112857-no-action.pdf`

D. 13 November 2021 — APRA rejection of whistleblower status

https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2021-11-13-APRA-reject-Whistleblower-Status.pdf

Filename:

`2021-11-13-APRA-reject-Whistleblower-Status.pdf`

These are separate documentary events.

The exact wording of each response still needs to be read from its original PDF. I will not infer it from the filenames.

---

2. NDIS PID — 2023

The repository tree identifies a substantial group of records relating to the 2023 NDIS public interest disclosure and the Krypton matter.

A. NDIS PID copy

Original repository file:

https://github.com/wezzo72/Barrandodger/blob/main/NDIS%20PID%20copy.pdf

Filename:

`NDIS PID copy.pdf`

Recorded size: 3,907,440 bytes.

B. 2 June 2023 — NDIS email concerning PID 2023 / Krypton allocation

Original repository file:

https://github.com/wezzo72/Barrandodger/blob/main/docs/email-extracts/2023-06-02-ndis-gov-au-re-pid-2023-krypton-allocation-d-77bdbf90.pdf

Filename:

`2023-06-02-ndis-gov-au-re-pid-2023-krypton-allocation-d-77bdbf90.pdf`

Recorded size: 5,194 bytes.

C. 2023 PID Krypton preliminary record

https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2023-PID-Krypton-preliminary.pdf

Filename:

2023-PID-Krypton-preliminary.pdf

D. 18 June 2023 — Ombudsman PID decision not to allocate

https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2023-06-18-Ombudsman-PID-decision-not-to-allocate.pdf

Filename:

2023-06-18-Ombudsman-PID-decision-not-to-allocate.pdf

Recorded size: 610,760 bytes.

E. NDIS PID response not in time — appeal to Ombudsman

https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/NDIS-PID-response-not-in-time-appeal-to-ombudsman-2023Krypton.pdf

Filename:

NDIS-PID-response-not-in-time-appeal-to-ombudsman-2023Krypton.pdf

F. NDIS response — PID 2023 Krypton, SEC OFFICIAL

https://github.com/wezzo72/Barrandodger/blob/main/gmail-drive-sweep/01-official-government/NDIS-response-PID-2023-Krypton-SEC-OFFICIAL.pdf

Filename:

NDIS-response-PID-2023-Krypton-SEC-OFFICIAL.pdf

The tree also lists two substantial statement exhibits dated April 2023:

- docs/statement-exhibits/2023-04-ndia-pid-2023-krypton-long-copy.pdf — approximately 26.5 MB.
- docs/statement-exhibits/2023-04-ndia-pid-2023-krypton.pdf — approximately 3.9 MB.

These may contain the disclosure material and supporting attachments, but their contents have not yet been verified.

The presence of these records is important because the NDIS chronology should not be reduced to a single email or a single allocation decision. The original disclosure, agency correspondence, any decision not to allocate, subsequent appeal and later response must be examined as separate records.

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3. FEDERAL COURT — 27 MARCH 2023

Original PDF retrieved and read.

File:

2023 03 27 Final Assessment – Dr Rich McLean copy 6.pdf

This is a three-page letter signed by:

Scott Tredwell

General Counsel

Federal Court of Australia

I have read the full text from the Library copy.

Key findings and reasoning recorded in the assessment

1. Authority

Tredwell states that he was authorised by the Federal Court's Chief Executive Officer to perform authorised-officer functions under the Public Interest Disclosure Act 2013 (Cth).

2. Employment

He says he was satisfied, on the information supplied, that you were or had been an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker and Mental Health Advocate.

3. Nature of the concerns

He records that your correspondence raised concerns about oppression, victimisation and psychological, financial and reputational detriment.

He also records that you believed the material tended to show possible:

- Perversion of the course of justice;
- Maladministration; and
- Danger to health or safety.

4. Disclosable conduct

Importantly, he says he was prepared, for the purposes of the initial assessment, to assume that the conduct described could constitute disclosable conduct under the PID Act.

5. The decisive procedural issue

He was not satisfied that the disclosure related to the Federal Court, Federal Circuit and Family Court, or National Native Title Tribunal.

He therefore concluded that the correspondence had not been provided to an authorised recipient for an internal disclosure under the Act.

6. Decision

He decided not to allocate the handling of the disclosure to any agency.

He stated that no further action under the PID Act would be taken by the Federal Court or FCFCOA, or another Commonwealth agency, on that correspondence.

7. Notification

He also stated that he would not advise the Principal Officers of the Federal Court or FCFCOA of the disclosure or his decision.

Why this document matters

It is an actual institutional assessment, not merely an acknowledgement.

It records the nature of the concerns, recognises the possibility that the alleged conduct could be disclosable, and explains why the Federal Court did not progress the matter under

the PID Act.
It does not determine whether the underlying allegations were true or false, and it does not establish that another agency was legally required to investigate them.
That distinction is essential to an impartial examination.

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4. WHAT REMAINS INACCESSIBLE IN THIS RETRIEVAL ATTEMPT

I have recovered the repository paths and identifiers, but direct retrieval of the following original PDFs through the available web route failed.

Original file	Current status
2021-10-22-APRA-OAIC-PID-whistleblower-response-SEC-OFFICIAL.pdf	Path and size identified; PDF content not retrieved
2021-10-22-en2112857-pid-correspondence.pdf	Path and size identified; PDF content not retrieved
2021-11-03-oaic-en2112857-no-action.pdf	Path identified; PDF content not retrieved
2021-11-13-APRA-reject-Whistleblower-Status.pdf	Path identified; PDF content not retrieved
NDIS PID copy.pdf	Path and size identified; PDF content not retrieved
2023-06-02-ndis-gov-au-re-pid-2023-krypton-allocation-d-77bdbf90.pdf	Path and size identified; PDF content not retrieved
2023-06-18-Ombudsman-PID-decision-not-to-allocate.pdf	Path and size identified; PDF content not retrieved

NDIS-response-PID-2023-Krypton-SEC-OFFICIAL.pdf	Path and size identified; PDF content not retrieved

This is a retrieval limitation, not evidence that the files are private or absent.
The repository tree itself establishes that these paths were recorded in the supplied repository snapshot.

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5. THE EVIDENTIARY POSITION SO FAR

The strongest documentary result is the Federal Court assessment.
The APRA/OAIC and NDIS records now have identifiable filenames and can be targeted precisely rather than searched for blindly.
The next examination should place each disclosure beside the institution's actual response and record:

1. Date and recipient of the original disclosure.
2. The conduct reported.
3. The agency's acknowledgement or decision.
4. The statutory or procedural reason given.
5. Whether the matter was referred, allocated, declined or closed.
6. Any later complaint or review.
7. Any subsequent event, without assuming that chronology alone proves retaliation.

The distinction between documentary fact and inference

A complete forensic examination must distinguish:

- **Documentary fact:** What the original record actually says.
- **Official record:** What an agency formally recorded or decided.
- **Corroborated evidence:** What is independently supported by other records.
- **Testimony:** What the person involved reports experiencing.
- **Inference:** What may reasonably be concluded from the sequence of events.
- **Allegation:** What remains asserted but not established.
- **Interpretation or faith:** Personal meaning and spiritual understanding, which must not be represented as documentary proof.

The fact that an agency declined to allocate or progress a disclosure does not, by itself, prove retaliation, conspiracy or wrongdoing. Equally, an agency's decision not to progress a disclosure does not establish that the underlying concerns were false.
The documentary record must be examined on its own terms.

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6. NEXT ESSENTIAL RETRIEVAL AND EXAMINATION

The next step is to obtain the actual contents of the identified APRA/OAIC and NDIS PDFs. The examination should then construct two complete documentary sequences.

Sequence A — APRA/OAIC, 2021

- Original disclosure and correspondence dated 22 October 2021.
- APRA/OAIC response.
- OAIC no-action record dated 3 November 2021.
- APRA whistleblower-status rejection dated 13 November 2021.
- Any subsequent review, complaint or correspondence connected to reference EN2112857.

Sequence B — NDIS PID / Krypton, 2023

- Original disclosure and supporting material.
- NDIS correspondence dated 2 June 2023.
- Any formal allocation or non-allocation decision.
- Ombudsman decision dated 18 June 2023.
- Subsequent appeal and response.
- Any later review or correspondence connected to the same disclosure.

Sequence C — Federal Court, 2023

- Original disclosure submitted to the Federal Court.
- Correspondence dated 7, 23 and 24 March 2023, where relevant.
- Final assessment dated 27 March 2023.
- Any subsequent correspondence responding to the decision.
- Any later agency referral or review, if documented.

The purpose is to compare what was reported with what each institution actually did, not to assume the conclusion in advance.

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7. SOURCE REGISTER — REPOSITORY LINKS

GitHub repository

https://github.com/wezzo72/Barrandodger

APRA/OAIC — 2021

https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2021-10-22-APRA-OAIC-PID-whistleblower-response-SEC-OFFICIAL.pdf

https://github.com/wezzo72/Barrandodger/blob/main/docs/drive-evidence/2021-10-22-en2112857-pid-correspondence.pdf

https://github.com/wezzo72/Barrandodger/blob/main/docs/drive-evidence/2021-11-03-oaic-en2112857-no-action.pdf

https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2021-11-13-APRA-reject-Whistleblower-Status.pdf

NDIS PID / Krypton — 2023
https://github.com/wezzo72/Barrandodger/blob/main/NDIS%20PID%20copy.pdf
https://github.com/wezzo72/Barrandodger/blob/main/docs/email-extracts/2023-06-02-ndis-gov-au-re-pid-2023-krypton-allocation-d-77bdbf90.pdf
https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2023-PID-Krypton-preliminary.pdf
https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/2023-06-18-Ombudsman-PID-decision-not-to-allocate.pdf
https://github.com/wezzo72/Barrandodger/blob/main/docs/official-drive/NDIS-PID-response-not-in-time-appeal-to-ombudsman-2023Krypton.pdf
https://github.com/wezzo72/Barrandodger/blob/main/gmail-drive-sweep/01-official-government/NDIS-response-PID-2023-Krypton-SEC-OFFICIAL.pdf
Federal Court — 27 March 2023
2023 03 27 Final Assessment – Dr Rich McLean copy 6.pdf
The retrieved Library copy was read in full. The corresponding repository file path was not independently confirmed in this retrieval.

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8. CONCLUSION — PRESERVATION BEFORE CONCLUSION

I have retrieved and examined one of the three priority original PDFs.
I have identified the exact repository paths for the other two exchanges and their associated response records, but I have not yet retrieved their contents.
The repository listing provides a concrete basis for continuing the examination. The next task is not to reconstruct the documents from memory or filenames. It is to retrieve and compare the original records.
I reported what I believed was wrongdoing. I sought acknowledgement, protection and investigation. I continued to pursue answers when the process itself became another source of hardship.
The documentary record must be allowed to speak for itself.
THE WITNESS REMAINS.
The documents remain.
The chronology remains open.
Preservation first. Examination second. Conclusion last.

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THE WITNESS REMAINS
A whistleblower's testimony of survival & faith
The archive is a finding aid — not a court — not a verdict.
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OpenTimestamps receipt created and download started

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